

# The U. P. Famine Relief Fund Act, 1936

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State of Uttar Pradesh - Act

The U. P. Famine Relief Fund Act, 1936

UTTAR PRADESH

India

The U. P. Famine Relief Fund Act, 1936

Act 10 of 1936

Published on 1 January 1936

Commenced on 1 January 1936

[This is the version of this document from 1 January 1936.]

[Note: The original publication document is not available and this content could not be verified.]

[Repealed by

THE UTTAR PRADESH (FOURTH) REPEALING ACT, 2021 (Act 36 of 2021)

on

21 December 2021

]

The U. P. Famine Relief Fund Act, 1936

U.P. Act

No. 10 of 1936

Received the assent of the Governor on November 25, 1936 and Governor-General on December 10, 1936 and was published on December 19, 1936. For S.O.R. refer Gazette, 1936 Part VIII, pages 275-276.

An Act to provide for the establishment and maintenance in the United Provinces of a fund, called the United Provinces

Famine Relief Fund for utilization on occasions of serious famine and of distress of a serious nature arising from drought, flood or other natural calamities in the said Provinces

Whereas it is expedient to provide for the establishment and maintenance in the United Provinces of a fund for utilization on occasions of serious famine and of distress of a serious nature arising from drought, flood or other natural calamities;

It is hereby enacted as follows :

1.

Short title and extent.

(1)

This Act may be called the United Provinces Famine Relief Fund Act, 1936.

(2)

It extends to the whole of Uttar Pradesh.

2.

Definition.

- In this Act, except in Section 4, "Fund" means the United Provinces Famine Relief Fund established under Section 3.

3.

Establishment of the U.P. Famine Relief Fund.

- As soon as may be, the [State Government]

[Substituted by A. O. 1937.]

shall establish in and for [Uttar Pradesh]

[Substituted by A. O. 1937.]

a Fund called " [Uttar Pradesh]

[Substituted by A. O. 1937.]

Famine Relief Fund."

The Fund shall consist of-

(i)

the securities of the [Central Government]

[Substituted by A. O. 1937.]

mentioned in Section 4;

(ii)

the interest which may from time to time accrue on such securities;

[(ii-a) a sum of fifty lakhs of rupees to be assigned to the Fund every year from the Consolidation Fund of the State]

[Added by U. P. Act XIX of 1961.]

;

(iii)

such other sums as the State Government may from time to time contribute to the Fund [\* \* \*]

[Deleted by U. P. Act XIX of 1961.]

; and

(iv)

the interest which may from time to time accrue on the securities of the Central Government in which the sums to the credit of the Fund may be invested or reinvested under Section 6.

Extension.-The following table would show the extension of the provisions of the Act to the areas mentioned therein :

No.

Area

Act by which extended

Notification by which enforced

Date of enforcement

1

2

3

4

5

1.

Rampur District

Rampur (Application of Laws) Act, 1950

...

Dec. 30, 1949

2.

Banaras District

Banaras (Application of Laws) Order, 1949

No. 3262 (1) XVII-Merged.

Nov. 30, 1949.

3.

Tehri-Garhwal District

Tehri-Garhwal (Application of Laws) Order, 1949,

Section 3.

No. 3262 (2) XVII-Merged.

Ditto

4.

Withdrawal of the Famine Relief Fund and its investment in the securities of the Central Government.

- The State Government shall as soon as may be, apply to the Central Government for permission to withdraw the balance at their credit in the Famine Relief Fund maintained under Schedule IV to the Devolution Rules made under the Government of India Act, and one such permission being accorded shall withdraw the said balance. The State Government shall, after setting part from balance so withdrawn such sum as may be required during the remaining portion of the financial year 1936-37 to meet the expenditure on the relief of famine for which provision has been made in the budget for the said year as expenditure to be met out of the Fund aforesaid invest the balance in the securities of the Central Government in the name of the Secretary to the Government of Uttar Pradesh Finance Department.

5.

Purposes for which the Fund may be utilized.

- The Fund shall not be expended except upon,-

(i)

the relief of serious famine, and

(ii)

the relief of distress of a serious nature arising from drought, flood or other natural calamities :

Provided that when the Fund exceeds fifty-five lakhs of rupees, the State Government may use the excess to meet expenditure on protective irrigation works and other works for the prevention of famine or to pay debt charges for which the State Government may from time to time be liable, including interest sinking fund charges and redemption charges.

6.

Investment and re-investment of amounts not required.

- The State Government shall from time to time invest or re-invest in the securities of the Central Government all sums to the credit of the Fund, which may not be immediately required for any of the purposes mentioned in Section 5.

7.

Accounts of the Fund and making up of the deficiency in the Fund.

(1)

The accounts of the Fund shall be made up at the end of each financial year, the securities included in the Fund being valued at their market value on the last day of the said year.

(2)

[\* \* \*]

[Deleted by U.P. Act XIX of 1961.]

(3)

[\* \* \*]

[Deleted by U.P. Act XIX of 1961.]

7A.

[

The amount assigned to the Fund every year under clauses (ii-a) and (iii) of Section 3 shall be an expenditure charged on the Consolidated Fund of the State].

8.

Power of the State Government to make rules.

- The State Government may make rules, consistent with this Act, for the purpose of giving effect to the provisions of this Act.

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